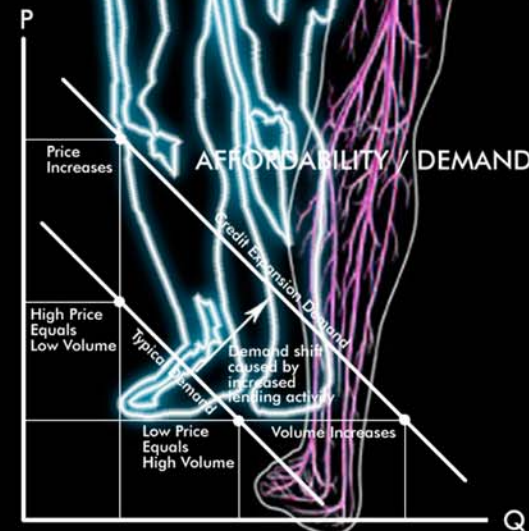
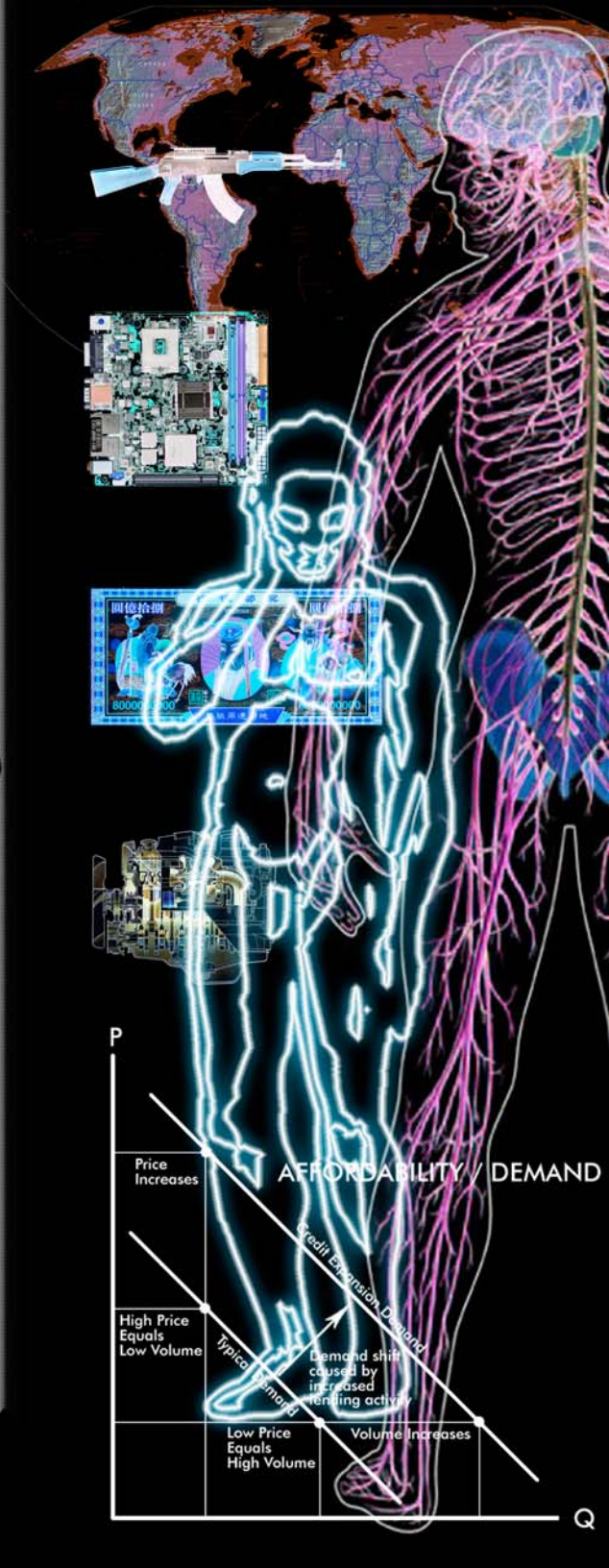


On Cause, Effect, and Suffering
Three Interpretations of Imprisonment

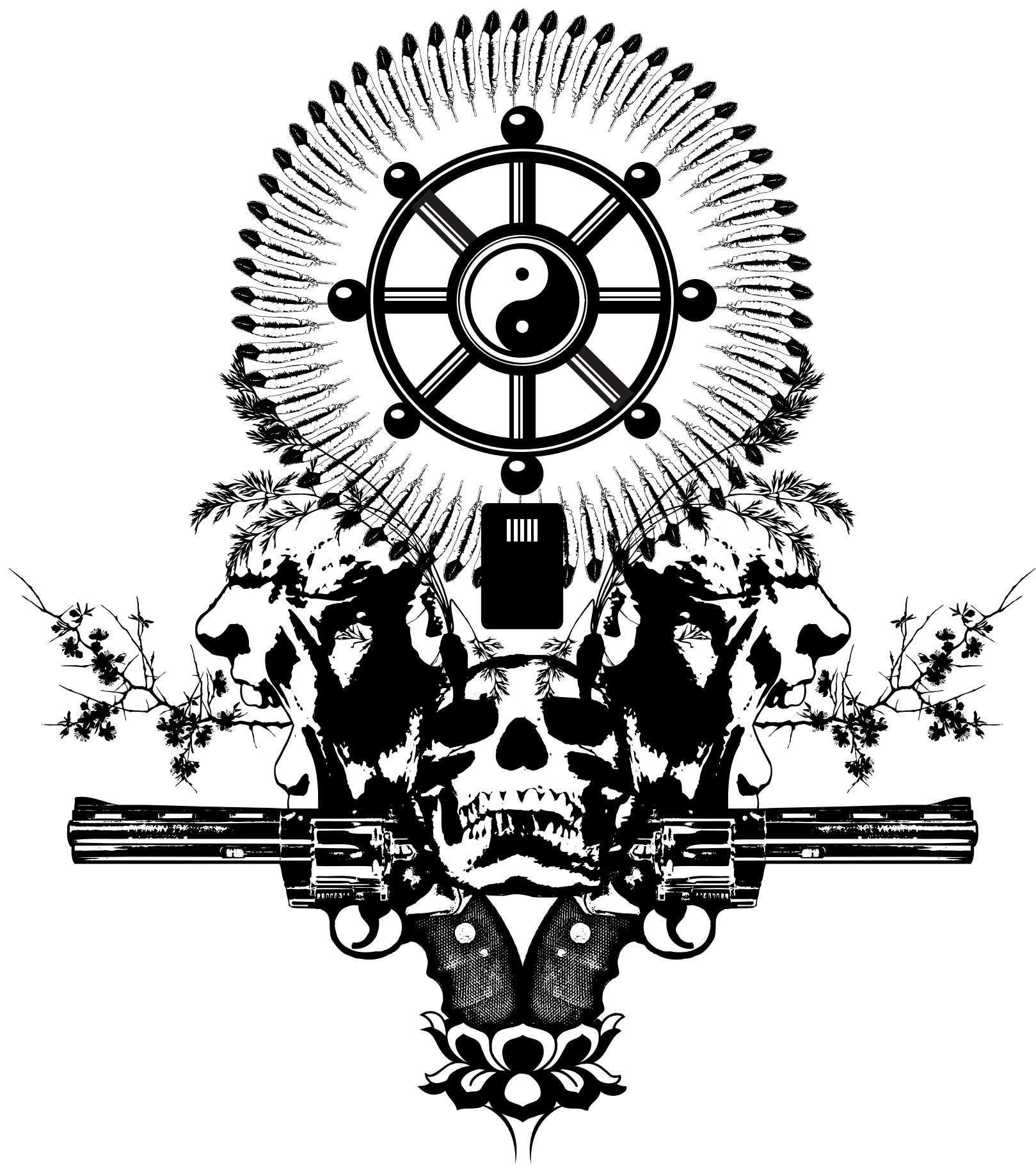
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Under Milk Wood

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On Cause, Effect, and Suffering
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One man kills another and must stand trial for what he has done. He meant to do it, knows why he did it, and in any case if you had lived his life you would have done the same. Who do we hold responsible for his actions? To what degree is he responsible? What rights does he have if he is found guilty? What happens when you pack him in row after row of small cages for years? What will that do to him, his jailers, and the society he is still a part of? Is the correctional facility his only prison? Can he ever really be free?

These are some of the issues of penal policy I explore here in art form. To do this, I have created three illustrations which reflect my understanding and interpretations of the criminal justice system and imprisonment; taken as a whole, they move from the abstract to the concrete, from the general to the specific, from the universal to the personal, and perhaps back again.

The Evolution of Cause.

This piece depicts a man in four vastly different cultural, technological, and economic contexts, and takes an evolutionary view of human societies and the concepts of guilt, responsibility, and will. The first man exists in a tribal hunter-gatherer culture with relatively simple tools, of which the primary mode of production is foraging and limited horticulture. The second exists in a sedentary imperial agrarian society with an agricultural production base; this results in the development of money, class hierarchy, economic specialization, formal law, and writing. The third finds himself an autonomous captain of industry and lives in a world of mass production, abstract legal entities, categories, and non-hereditary government. The fourth inhabits a world of immense complexity, surrounded by machines which

facilitate an unprecedented degree of travel and communication, where the most valued work is the production of knowledge.

Each has a very different conception of "will" and therefore, responsibility and guilt. The notion of "will" or "free will" arises in our attempt to locate causality and therefore assign moral culpability. In tribal cultures, there was not a sharp differentiation between the self and the natural world. Causality was located in nature: the intentions of humans were projected onto natural phenomena, and so the "intentions" of spirits and totems were thought to work through people, giving guidance to, and even possessing them. This is the source for the development of beliefs involving totemic magic, exorcism, and curses. To reflect this, our tribesman is depicted here in a natural setting, surrounded by greenery and spirit beings; *Mimi* spirits dance with and through his body, *Narmarrgon* the lightning man and his family play at his feet, and sea spirits shimmer in the light of a living sun.

Once humans "subdued" the natural world via agriculture and domestication and began to form early nation-states, the perceived causes of human and natural action were shifted skyward, to more abstract and all-encompassing deities. In the case of the Western world, spirit-possession evolved into the idea of God (or His agents) moving through humanity. This worldview generated dispute resolution systems such as trial by ordeal and trial by combat¹: given that God or something that God created moved you, God would judge you. Our farmer stands next to several sheaves of wheat which he has grown and harvested through the sweat of his brow; he prays to the Lord that he be worthy of another good harvest, asks that his sins be forgiven, and hopes that he sees angels in Heaven, and not the burning Hell-demons, when he dies.

With the rise of reflective reason and an emphasis on empirical study, a creator God as "prime mover" no longer provided a satisfactory explanation for cause and effect: if God was good, and God created and moved the world, how could there be such evil and suffering in it? This could only be

¹ While we might view trial by combat as a test of a person's killing expertise, we must remember that the "mythic" worldview of early empires believed that God or gods could favour you and grace you in battle.

explained by assigning the responsibility for human action to people.² Thus the locus of causation for human action moved from God into human beings: the free will of the autonomous individual subject enabled us to assign total moral responsibility to that subject. Essentially, the Classical liberal said that "You make choices, and it's all on you." Our man here stands alone, in stark isolation, the full weight of his life on his shoulders. He has only himself to blame or to credit for his accomplishments, and when he dies, that will be the end of everything he knows.

As the social and systems sciences currently rise in prominence (including new interdisciplinary studies such as Jared Diamond's "biogeography") we are beginning to understand that individual subjects are not wholly autonomous or "free" but are very much influenced and shaped by social, political, economic, technological, biological, and geographic factors. Responsibility has moved from "you make choices, and it's all on you" to "your choices are influenced by your circumstances, and it's on all of us." In underprivileged neighbourhoods such as African-American ghettos, for example, the introduction of drugs has tended to destroy, among other things, the local economies, such that the only viable economic engine left in some of these areas is the drug trade. Is it any wonder that so many children and young adults participate in it, despite the clear physical dangers and evils involved? Is it any wonder that murder rates are higher and literacy rates are lower in poor, drug-ridden communities? Would it not be the height of injustice to pin all of the blame of a particular crime on one individual, when so many causal factors are at play? We recognize, for example, that our current system privileges middle-class, heterosexual, able-bodied white males, and that they cannot take "all the credit" for their achievements; would it be fair, then, to make someone who has not had access to such privilege take "all the blame" for his failures?³ Some legal systems have begun to accept this type of comprehensive, systemic thinking, and it has been reflected, for example, in discretionary sentencing for abused women and underprivileged minorities, such as Aboriginals. Our man has now become transparent, a complex manifestation of

² And viewing events in nature impartially, separating facts from morality, such that an earthquake or volcanic eruption could be explained through scientifically-verifiable facts alone.

³ This is not to trivialize the existence and importance of personal responsibility, but simply to understand that difference sets of threats and opportunities produce different types of actors, as well as different ideas and probabilities of success and failure.

manifold causal factors, living as he does with the understanding that social, political, economic, technological, biological, and geographic conditions have a constraining and directional effect on will.⁴ I believe the central concern of penal policy, and criminal justice, at present is to inculcate this type of systemic, contextual thinking into its various stakeholders: politicians, judges, law enforcement officials, the media, and the general public. If successful, this would result in an attitudinal shift, which would enable us to use our resources in a wiser and more efficient way: for example, to legalize, regulate, and tax certain types of drugs and eliminate a significant percentage of drug-related crime; to place more emphasis on social and mental health programs; and to re-design our correctional institutions in a way which maximizes the probability of rehabilitation and re-integration.

Locked Up / Locked Down / Locked In

I first conceived the idea for this illustration when Professor Jackson spoke of a prisoner who needed to be convinced that the law could be more effective than the gun. This triggered a series of questions in my mind. Are the law and the gun diametrically opposed? Does the law not at least partially depend on the gun? Does the law enforcement officer rely more on the law or the gun? Should the morality of the law be measured against the morality of the gun, or its dependence on the gun? Does power, or effectiveness, legitimate morality? What are we responsible for proving to an incarcerated convict?

I also wished to incorporate another image we discussed in class: that of the "caged animal," angry and abused, and its relationship with law enforcement and free society. I have often thought about the effect being a law enforcement officer, particularly a jailer, would have on the psyche: we have heard

⁴ Psychologist Philip Zimbardo, who conducted the now-famous "Stanford prison experiment" in which students posing as prisoners and guards began behaving like real ones, studied the 2003 Abu Ghraib prison abuses and stressed the importance of understanding situational influences, positing the idea of "evil-generating situations." He stated, in the case of murder, that "if the killing can be shown to be a product of the influence of a powerful situation within a powerful system, then it's as if [the individuals who killed] are experiencing diminished capacity and have lost their free will or their full reasoning capacity." Zetter, Kim, "TED 2008: How Good People Turn Evil, From Stanford to Abu Ghraib", *Wired.com* (February 28 2008), Edward E. Hansen (ed.), URL = <http://www.wired.com/science/discoveries/news/2008/02/ted_zimbardo?currentPage=all>.

of so many cases, both sensational and typical, of abuse of authority in the media and in this class. I can easily understand how having someone in my power, whose freedoms and happiness have been taken away because we believe they deserve it, could bring out the worst in me: that part of me which is extremely judgmental, power-driven, and egotistical. I think that if I were a correctional officer, and I did not go into it with the explicit goals of being respectful, compassionate, and fair, my degeneration would be quick and almost inevitable.⁵

Locked Up / Locked Down / Locked In depicts a reversal of the imagery one might expect to see in such a work: the prisoner inside the cage is human, while law enforcement is represented by a police dog. The typical prisoner's only power comes from the law, since the law defines the parameters of his treatment, his rights, and his jailers' responsibilities. In this sense, he is actually seeking law enforcement: he is aspiring to be treated with the dignity the law accords to a human being.

The law enforcers, however, often find themselves operating on the animalistic principles of power and control. We have seen many examples of how they use authority and force to impose their will on prisoners without regard to or without knowledge of the law. At best, the law is an abstract entity with little relevance to their daily practice; at worst, they perceive it as a barrier to getting things done and treating the prisoners how they deserve to be treated.

We see in this illustration that the prisoner is reaching for the police badge, the symbol of law and law enforcement, but the badge is turned away from him, since society generally regards prisoners as those least deserving of legal protection. Instead, the badge faces the law enforcer and the concrete source of his power in a gesture of support, while simultaneously blocking the enforcer from committing some harmful or degrading act of his own retribution. The scales of justice give greater weight to the law enforcer than the prisoner and his concerns. I have coloured the prisoner red for three reasons: to signify his guilt with the colour of blood; to symbolize the seething rage he will likely develop during his imprisonment; and to indicate a degree of moral and legal complexity in his character and circumstances - that he is a human being, and that even the guilty have rights -- as contrasted with the binary, black-and-

⁵ It has occurred to me that perhaps the best jailers would be trained in a similar fashion to warrior monks.

white view of guilt and innocence built into our justice system. I have also framed the entire scene: while we might at first perceive the law enforcer as free, uncaged as it is, we notice that it, too, is behind the bars of a locked cell door. The prisoner is locked up, the institution is locked down, and everyone is locked in.

In light of Guantanamo Bay, Abu Ghraib, and illegal combatants, I have often asked myself whether it is justifiable, morally, pragmatically, and legally (these are interrelated), to essentially abuse or torture prisoners who we are certain have committed heinous deeds. My view has been clarified in light of our discussions in this class, and I have come to the simple conclusion that "the good guys" have to act like the good guys, or "punishment," i.e. moral retribution, loses its moral weight: it becomes a game of power and manipulation. If we say that a person "deserves" to be in prison, then those on the outside ought to demonstrate why they deserve better, or else morality becomes a mask for luck, money, and power. As such, prison cannot be about torture and degradation, or we end up exactly with the scene depicted here: the free reduce themselves to their baser instincts, while the caged reach for an ideal.

Under Milk Wood

I named this third and final piece after the Dylan Thomas radio play. This title was inspired by Professor Jackson's portrait of Gary Weaver and his reference to the following passage:

*We are not wholly bad or good
Who live our lives under Milk Wood
And Thou, I know, wilt be the first
To see our best side, not our worst.*

My intention here was to create a visual representation of Gary's life, across time, and also across "existential realms," in the hopes that the illustration would not just reflect Gary's experience, but perhaps that of all sentient beings.

Gary has, from a young age, experienced the effects of power, violence, and abuse. These were formative of his personality: his anger, his obstinate resistance to authority, and his desire to appear and be strong to protect himself and others from harm. These traits led to the death of another man, and that

death was a defining moment in Gary's life. As such, I have depicted a skull as a foundation element in this piece, and I have included the guns and screaming faces to acknowledge the significance of power, violence, resistance, and abuse in forming his life and mind.

We see, growing from the skull, plants, their roots nourished by the death and misery, and rising from there an integrated set of symbols: a Taoist *taijitu*, or *yin-yang*, overlayed on a Buddhist 8-spoked *dharma* wheel, circled by eagle feathers. These represent Gary's particular spiritual interests and his yearning for freedom and self-expression through art and contemplative practice.

In Zen Buddhism, it is often said that the "great matters" of life are birth and death: they are inescapable, universal, and life-defining. I was a student with a Zen Buddhist monastery for several years; the monks kept a full medical skeleton in plain view in the kitchen. This served as a constant reminder to practice in the face of the great matters, and also reminded us that death was no evil thing. Buddhists view existence and life as transitional; the Tibetan Buddhists describe death as a *bardo*, or intermediate state. In fact, both the Zen and Tibetan schools contain a series of practice instructions to use while dying.⁶

The skull in my illustration, then, does not have to be viewed as an evil or negative thing, but simply fundamental to our lives. Whereas we can interpret this imagery as good growing from evil, freedom from suffering, life from death, we can also simply find a description of change as intrinsic to existence. The *taijitu* specifically symbolizes perpetual change and the unity, or complementarity, of opposites. It is divided along a curved line to emphasize constant, cyclical movement, and each opposite, in its extremity, contains the seed of the other. It is a symbol of balance, harmony, and impermanence. The *dharma* wheel, or *Dharmacakra*, is an ancient and universal symbol of Buddhism: it and its components variously represent change, perfection, discipline, mindfulness, and the *Eightfold Path* to awakening from the small, egoic, separate-self.⁷ The eagle, according to the *Haudenosaunee*, or Iroquois

⁶ The Dalai Lama has stated that he is excited by the prospect of dying and practicing through death.

⁷ I attempted to make the ends of the spokes along the rims into rivets to acknowledge the nights Gary chose to spend on the bare bed frame in segregation, but they're hard to illustrate from a top-view, and I concede they look more like balls.

Confederacy, is the principle messenger of the Great Spirit, and can see all things from her vantage-point. She is connected to both the Spirit and the Earth, and she lays two eggs at a time; thus, all things in the world manifest in twos: male and female, light and darkness, summer and winter, peace and war, life and death. The eagle's feather is a symbol of wisdom, connectedness, courage, and healing.

At the centre of this image is a prison door. In my opinion, there are three prisons in Gary's life: the physical prison of the correctional institution, the mental prison of his habitual thoughts, feelings, and tendencies, and the existential prison of his separate self-sense. The first two are self-explanatory; I will briefly discuss the third. The essence of prison is its imposition of boundaries and its limitation of freedom; the eagle feather, Buddhism, and Taoism are all fundamentally concerned with duality, that is, that which only exists when you draw a line, when you create a boundary. The fundamental boundary of perception is the subject/object dualism. We perceive the ego -- our thoughts, feelings, experiences, memories, desires, tendencies -- as "our selves," as a subject, but the ego is, in fact, not a real subject: it is an object, or stream of objects, because *we perceive* our egos. We can be aware of our egos; our egos arise in some awareness which exists prior to our thoughts, feelings, experiences, memories, desires, and tendencies. This awareness is the absolute Subject, which some have called our true Self, or the Witness, and this one Self is undeniable. Even if we were to try to deny its existence, there is something doing the denying, and that something is fundamentally indistinguishable in all sentient beings: that which separates us, differentiates us, bounds us, all arises within that awareness, within the one Self.

Even after realizing this one Self, one boundary remains: the Witness and that which is witnessed. This Witness is, in fact, the final "contraction" in awareness, the subtlest form of the separate-self sense. The one Self must die, or dissolve, into everything that is witnessed, such that the entire universe manifests *in* and *as* that awareness.

The subject/object duality collapses and there is only pure nondual awareness, which is very simple, very obvious. Like a famous Zen Master said when he got his enlightenment, 'When I heard the bell ring, suddenly there was no "I" and no "bell," just the ringing.' Everything continues to arise, moment to moment, but there's nobody divorced or alienated from it. What you are looking out of is what you are looking at. There's no separation or fragmentation between subject and object, there is just the ongoing stream

of experience, perfectly clear and luminous and open. What I am is now everything that is arising.⁸

When all boundaries dissolve, freedom is found, and suffering ends. This is not to say that we cannot still feel pain, or anger, or remorse, but that we disidentify with it, we hold it as an object. Suffering will hurt just as much as it did before our "non-dual" realization, indeed, it may hurt more, because we will be sensitive to the suffering of all beings, but it will bother us less, since it is caused by the desire and grasping of the separate-self, a "delusion" or "prison" we have transcended. Therefore, *samsara is nirvana*; the cycle of cause, effect, and suffering *is* liberation, as they are "not-two" in our unconditioned awareness.

I have tried to imbue this illustration with a sense of symmetry and elegance, an organic feel and shape, to suggest that a life, a universe, filled with bitter suffering can still be beautiful. The final element of this piece is the lotus from which Gary's life and the entire universe springs. The bottom of the lotus opens into the page itself. This illustration becomes a metaphor for existence: all of the black on this page is an object which manifests in and as the page, which is awareness, the one Self. Thus, black and white, page and content, life and death, imprisonment and freedom, are not-two. This is a portrait of suffering, and a portrait of freedom.

⁸ Wilber, Ken. *Grace and Grit: Spirituality and Healing in the Life and Death of Treya Killam Wilber*. Boston, Shambhala, 2000, p. 121-22.